ASHBOURNE HEALTHCARE GROUP LIMITED

Company number 06842211

MINUTES OF A MEETING OF THE BOARD OF DIRECTORS

Date	14 April 2025
Time	10.00am
Place	By video conference
Present	Helena Marsh (Non-executive Chair); Iqbal Rahman (CEO); Lorna Keane (COO); Adrian Vholes (Group Finance Director)
In attendance	Daniel Pryce (General Counsel & Company Secretary)

1. Quorum and notice

The Chair noted that a quorum was present and that the meeting had been duly convened. There were no declarations of interest in respect of the business to be transacted.

2. Whitmore employment matter

The Company Secretary reported on the intimated Employment Tribunal claim by Dr Rebecca Whitmore, former Clinical Governance Lead and Registered Manager of Ferndene Court, alleging automatic unfair dismissal and detriment for making protected disclosures. The Board noted the written advice from Whitfield Carter LLP dated 28 January 2025, which assessed the Company's prospects of successfully defending the automatic unfair dismissal claim at no better than 40–45% and estimated the Company's exposure, on the claimant's schedule of loss, at up to approximately £206,000, the compensatory award being uncapped.

The Board discussed the litigation risk, the uncapped nature of the potential award, the reputational sensitivity of a whistleblowing dispute given the Company's regulated status, the ongoing CQC matter concerning Maple Court, and the management time that a contested hearing would absorb.

3. Resolutions

IT WAS RESOLVED THAT:

1. the Company enter into a settlement agreement with Dr Rebecca Whitmore in full and final settlement of all claims arising out of or in connection with her employment and its termination, on terms providing for a total termination payment not exceeding £185,000 (inclusive of statutory redundancy pay and notice pay already made) together with a contribution of up to £5,000 plus VAT to the claimant's legal fees, and including confidentiality, non-derogatory undertakings and an agreed reference;
2. the settlement be entered into without any admission of liability;
3. any one director, acting together with the Company Secretary, be and is hereby authorised to agree the final form of the settlement agreement and to execute it on behalf of the Company; and
4. Whitfield Carter LLP be instructed to finalise and complete the settlement accordingly.

4. Close

There being no further business, the Chair declared the meeting closed.

Signed	H. Marsh
	Helena Marsh, Chair
Date	14 April 2025